

SUPREME COURT OF THE STATE OF NEW
YORK: COUNTY OF NEW YORK

-----X
RICHARD GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NEW YORK CITY POLICE DEPARTMENT,

Defendants.
-----X

Index No.: _____

Date purchased _____

Plaintiff designates:
NEW YORK COUNTY
as the place of Trial.

The basis of the venue is
Situs of occurrence:

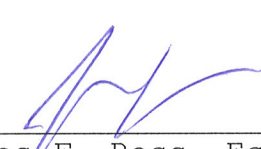
Address of occurrence:
435 East 105th St, Apt 13E
New York, NY 10029

SUMMONS WITH NOTICE

To the above named Defendant:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
July 7, 2015



James F. Ross, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: the nature of this action: negligence; personal injuries;
The relief sought is monetary damages.
Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from October 1, 2014 and the costs of this action

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

RICHARD GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK and NEW YORK CITY
POLICE DEPARTMENT,

Defendants.

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VERIFIED COMPLAINT

Index #:

Plaintiff herein, by his attorneys, **Law Offices of ROSS and HILL, PLLC** complaining of the above named Defendants, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of New York County, City and State of New York.

2. At all times hereinafter mentioned, defendant City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant New York City Police Department was a department of the City of New York.

4. At all times hereinafter mentioned, defendant City of New York operated and

controlled the New York City Police Department.

5. At all times hereinafter mentioned the New York City Police Department employed police officers working in Kings County, New York City.

6. On December 11, 2014 plaintiff's Notice of Claim was made and served upon the defendants, said service having been made within 90 days of the occurrence giving rise to the claim.

7. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim is based.

9. That on October 1, 2014 at approximately 7:00 am, the defendants' police officers, negligently arrested the plaintiff even though plaintiff had not acted unlawfully.

10. That the arrest of plaintiff was without reasonable or probable cause and constituted a false arrest of plaintiff.

11. The incident as aforescribed resulted from the negligence of the defendant, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

12. The false arrest of plaintiff by defendant, its agents, servants and/or employees, caused plaintiff pain, suffering, humiliation and personal injury.

13. As a result of the foregoing, plaintiff sustained damages in an amount which

exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 - 13 hereof with the same force and effect as though fully set forth herein at length.

15. After falsely arresting plaintiff, police officers handcuffed plaintiff and restrained him and unlawfully detained plaintiff.

16. The unlawful detention of plaintiff was without any cause or justification.

17. The unlawful detention of plaintiff caused said plaintiff pain, humiliation, personal injury and suffering.

18. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 - 13 and 14 - 18 hereof with the same force and effect as though fully set forth herein at length.

20. That after falsely arresting plaintiff, plaintiff was unlawfully imprisoned, constituting a false imprisonment of plaintiff.

21. That the false imprisonment of plaintiff caused said plaintiff personal injury, pain, humiliation and suffering.

22. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

23. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-13, 14 - 18 and 19 - 22 hereof with the same force and effect as though fully set forth herein at length.

24. In placing plaintiff under arrest, police officers used excessive and unjustified force, intimidated plaintiff and injured plaintiff.

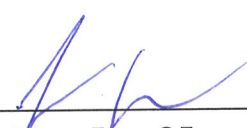
25. The actions of the arresting officers constituted an assault and battery.

26. As a result of the assault and battery committed on plaintiff, plaintiff sustained personal injuries.

27. As a result of the injuries inflicted on plaintiff, plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Yours, etc.,



James F. Ross, Esq. OF

ROSS & HILL, ESQS.

Attorneys for Plaintiff

16 Court Street, 35TH Floor

Brooklyn, New York 11241

(718)855-2324

STATE OF NEW YORK, COUNTY OF NEW YORK) s.s.:

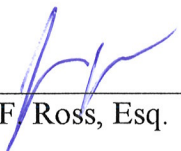
I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am a an Associate in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff(s) in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff(s) is that plaintiff(s) is presently outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff(s), investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York
July 7, 2015



James F. Ross, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RICHARD GRAY,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NEW YORK CITY POLICE DEPARTMENT,

Defendants.

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SUMMONS WITH NOTICE
AND VERIFIED COMPLAINT

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ROSS & HILL, ESQS.
Attorney for Plaintiff
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